

BEFORE THE PHILADELPHIA BOARD OF ETHICS

J. Shane Creamer, Jr. Executive Director Philadelphia Board of Ethics 1515 Arch Street, 18 th Floor Philadelphia, PA 19102 Petitioner vs. Dee Dukes Educational Nominating Panel deedukes33@gmail.com Respondent	Matter No.: 2510ET24 Date Served: October 23, 2025
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NOTICE OF ADMINISTRATIVE ENFORCEMENT PROCEEDING

Pursuant to Philadelphia Board of Ethics (the “Board”) Regulation No. 2 (“Regulation No. 2”), Paragraphs 2.12 and 2.13, the Executive Director has found there is probable cause to believe that you have violated the City of Philadelphia’s Public Integrity Laws, and accordingly, serves this Notice of Administrative Enforcement Proceeding (this “Notice”) on you, Dee Dukes (the “Respondent”), thereby commencing an administrative enforcement proceeding against you.

I. RIGHT TO RESPOND TO THIS NOTICE

You have the right to respond to this Notice in writing. The written response to this Notice is due within twenty (20) days of the date of service of the Notice.

II. RIGHT TO REQUEST A HEARING BEFORE THE BOARD

You have the right to request a hearing before the Board. If you wish to request a hearing, you must include this request in your written response to the Notice.

III. WAIVER OF THE RIGHT TO A HEARING

If you do not request a hearing in a written response to the Notice, you waive your right to a hearing as set forth in Regulation No. 2, Paragraph 2.14(c).

IV. APPLICABLE PROVISIONS OF LAW ALLEGED TO BE VIOLATED

The Executive Director alleges that Respondent has violated the Philadelphia Code (the “Ethics Code” or “Code”) Section 20-610—specifically, Ethics Code Section 20-610(1)—as interpreted by Board Regulation No. 3 (“Regulation No. 3”).

A. The Requirement to file a Statement of Financial Interests

Section 20-610 of the Ethics Code requires certain individuals to file a Statement of Financial Interests with the Board. The Statement of Financial Interests required by the Code is also known as the “City Form.” The City Form discloses certain financial information about the filer for the preceding calendar year.

Regulation No. 3 provides a detailed interpretation of Section 20-610 of the Ethics Code. Section 20-610, as interpreted Regulation No. 3, sets forth the individuals who are required to file the City Form and the deadline for filing it.

Pursuant to the Ethics Code, “[m]embers and executive directors of boards and commissions that exercise significant powers of government, as determined by the Board of Ethics by regulation” are required to file the City Form. Code § 20-610(1)(e). Accordingly, the Board has determined by regulation that members of the Educational Nominating Panel must file a City Form when the Educational Nominating Panel is convened. Regulation No. 3, ¶ 3.6.

An individual who is required to file a City Form must do so by May 1 in any year in which they hold office and by May 1 of the year after they leave such office. Code § 20-610(1);

Regulation No. 3, ¶ 3.7(a). An individual who is required to file a City Form but who takes office after April 1 must file the City Form within 30 days of taking office. Regulation No. 3, ¶ 3.7(b).

B. Penalties for violations

The failure to timely file a City Form is a violation of Ethics Code Section 20-610(1). A violation of Section 20-610(1) is subject to a civil monetary penalty of \$1,000. Code § 20-612(1), 20-1302.

V. DESCRIPTION OF THE ACTS THAT FORM THE BASIS OF THE ALLEGED VIOLATION

A. Background

1. Respondent was a member of the Educational Nominating Panel when it was last convened in 2024.
2. Thus, Respondent last held this office in 2024.
3. Accordingly, as a member of the Educational Nominating Panel who last held this office when the Educational Nominating Panel was last convened in 2024, Respondent was required to file a City Form for 2024 by May 1, 2025.

B. Factual allegations

4. Respondent did not file a City Form for 2024 by May 1, 2025.
5. Board staff contacted Respondent and alerted Respondent on multiple occasions to the failure to file.
6. Respondent filed a City Form for 2024 on September 25, 2025, 147 days after the required deadline of May 1, 2025.

VI. ALLEGED VIOLATION: COUNT I-VIOLATION OF ETHICS CODE § 20-610(1)

7. Paragraphs 1-6 are incorporated by reference fully as though the same were herein set forth at length.

8. By failing to file a City Form for 2024 by May 1, 2025, Respondent violated the Ethics Code Section 20-610(1).

WHEREFORE, the Executive Director seeks a maximum civil monetary penalty of \$1,000 for Respondent's alleged violation of Philadelphia Code Section 20-610(1).

Date: 10/23/25

Respectfully submitted,



J. Shane Creamer, Jr. Esq.

Executive Director

Richard Barzaga, Esq.

Senior Staff Attorney

Erin Ambrose, Esq.

Staff Attorney

City of Philadelphia Board of Ethics

1515 Arch Street, 18th Floor

Philadelphia, PA 19102

Phone: (215) 686-9450

Fax: (215) 686-9453